

Tentative Rulings for September 2, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2303018	ZAMORANO VS ENERGY SERVICE PARTNERS INC.	HEARING ON MOTION FOR ORDER TO SEAL DOCUMENT(S)

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiffs, Oscar and Patricia Zamorano, allege that Defendant, Jorgen Harjo, is a salesperson/employee of Defendant, Energy Service Partners, Inc. dba ESP Contracting (ESP), which is a partner to Defendant, Goodleap, LLC (Goodleap). Plaintiffs allege Harjo represented to them that he was selling solar, which was free including installation and supplies, and that solar had been sold to his neighbors in Cathedral City, among other representations. Plaintiff, Oscar Zamorano (Oscar), told Harjo that he was not interested, but allowed Harjo to continue his sales pitch. Plaintiffs allege that at no time did Harjo have any paperwork nor did he mention the words “loan” or “financing”. Harjo asked Oscar to sign a tablet so measurements of the roof could be taken. Oscar signed the tablet and gave Harjo Plaintiffs’ email address, but told Harjo they wanted everything in the mail. Harjo agreed.

Plaintiffs allege the representations made were false. The true facts were that Defendants were required by law to provide a disclosure/brochure before obtaining any signature; the monthly service fee for electricity would not go up if a payment of \$10,000 were paid within 18 months and/or Plaintiffs qualified for a tax break; Defendants were selling a solar system and charging for supplies and materials; Defendants used Oscar’s signature on a document that gave them the express right to add a signature to legal documents in Plaintiffs’ names; the signature would be used for other purposes; the email would be used by Defendants; and nothing would be timely provided in the mail.

Plaintiffs filed their operative Third Amended Complaint (TAC) on 10/29/24 alleging six causes of action: 1) deceit based on negligent misrepresentation; 2) elder abuse – negligence per se; 3) elder abuse; 4) fraud and deceit – intentional misrepresentation of fact; 5) fraud and concealment; and, 6) declaratory relief.

Plaintiffs, Oscar and Patricia Zamorano, bring this motion for a court order to seal court records regarding settlement to support an application for enforcement pursuant to CCP § 664.6. (Cal. Rules of Court [CRC] Rule 2.550, *et. seq.*) The matter settled on the day of trial, March 6, 2026. Plaintiffs assert numerous facts to justify sealing the records (e.g., agreement was for confidential terms for payment.) They assert that the settlement must be put on the record but, must also be sealed so, the judgment can be entered; and, that obtaining the court order is necessary to an overriding interest that overcomes the right of the public to access the records.

Defendant, Energy Service Partners, Inc. dba ESP Contracting (ESP), opposes the motion arguing that Plaintiffs must authenticate the agreement sought to be sealed; that CRC, Rule 2.550(d)(4) requires findings that the proposed sealing is narrowly tailored; that the only matter subject to confidentiality is the *amount* of the settlement so, the

request to seal the entire settlement agreement is overly broad; that judgment should not be entered as this is not a properly noticed CCP § 664.6 motion; that Plaintiffs' attorneys' fees request of \$17,500 is unreasonable.

Motion to Seal

The general rule is that unless confidentiality is required by law, court records are presumed to be open to the public. Pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties. A prior court order must be obtained. (CRC, Rule 2.551(a); *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 888.) The party who requests the document be sealed must *lodge* it with the court, and "pending determination of the motion or application, the lodged record will be conditionally under seal." (CRC, Rule 2.551(b)(4).) If the Court denies the motion to seal, the clerk must return the lodged record to the submitting party and must not place it in the case file" (CRC, Rule 2.551(b)(6).) A declaration containing facts sufficient to justify the sealing is required. (CRC, Rule 2.551(b)(1).)

Here, Plaintiffs request a court order sealing the *entire* Settlement Agreement and Release (SAR) among other documents (e.g., Plaintiffs' counsel's redactions of amounts in his declaration) on the grounds of confidentiality, which they claim must be filed under seal so the Court can enter judgment pursuant to CCP § 664.6 for enforcement purposes. To the extent that Plaintiffs are seeking to have the Court enter judgment pursuant to CCP § 664.6, this request must be made by a properly noticed motion under that section. This motion is limited to whether sealing the SAR documents is proper under the circumstances asserted by Plaintiffs. Notably, ESP objects to the SAR conditionally submitted under seal on the ground that it has not been authenticated, as required. (Evid. Code §§ 403, 702, 1400, 1401; *People v. Goldsmith* (2014) 59 Cal.4th 258, 266-267.) ESP's objection is well-taken.

Plaintiffs' assert that various facts justify sealing the SAR, as follows: 1) an oral agreement was put on the record on the first day of trial (3/6/26); 2) terms for payment from Defendants, ESP and its partner/joint venturer, GoodLeap to Plaintiffs are confidential; 3) condition of settlement payment was reserved for enforcement under CCP § 664.6; 4) the settlement amount agreed to be paid by ESP and Goodleap was [redacted]; 5) GoodLeap has paid [redacted]; 6) ESP confirmed it was not able to comply by transmitting settlement funds; 7) Plaintiffs response was that ESP was not in compliance and they demanded compliance; 8) ESP made a payment for [redacted] – not in compliance and continued not to comply; and 15) payment of the amount of [redacted] has not been made by ESP. (Motion, p. 2:9-3:26.) The remaining "facts" concern the general reasons for making this motion. (*Ibid.*) However, they are not "facts" supporting any basis to seal SAR.

CRC, Rule 2.550(d) provides that express factual findings are required to seal the records. To grant an order to seal court records, the court must expressly find that: (1) an overriding interest exists that overcomes the right of public access to the records; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (CRC 2.550(d).) The party seeking to seal documents has the burden

to present sufficient facts to justify sealing the court records. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879.)

Here, Plaintiffs' counsel declares that sealing is necessary to an overriding interest that overcomes the right to public access to the records. That overriding interest "is the parties have entered into a settlement with the amount of settlement terms agreed to be confidential, and condition of payment to be conditional on the record." (Dec.McClellan ¶ 2.c.) Plaintiffs assert this overriding interest promotes settlements by keeping them confidential but, enforceable under CCP § 664.6. (*Ibid.*) A contractual obligation not to disclose could constitute an overriding interest. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283.) However, there must still be prejudice. (*Id.*)

Plaintiffs argue that if the SAR is not sealed, they will be prejudiced by an inability to enforce the terms since the Court will not have sufficient information to enter judgment or to enforce it. (*Id.* ¶¶ 4-5.) ESP does not oppose the Court keeping the settlement amounts confidential. However, the Court must be able to enforce the material terms, which it cannot do without including the amounts in a judgment.

Plaintiffs also conclude that the proposed sealing is narrowly tailored and there are no less restrictive means to protect the overriding interest. (*Id.* ¶ 6.) These assertions and arguments are conclusory. And, they do not support sealing the *entire* SAR and related documents.

Moreover, ESP adds that what Plaintiffs submitted does not allow for the Court to enter into any particular monetary judgment because it acknowledges some payment was made but, does not credit that amount and set forth the remaining balance due. "While the court may interpret the terms of the parties' settlement agreement, 'nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.'" (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1374.) Thus, a court can only enforce terms that that were actually agreed to by the parties. (*Leeman, supra.* at p. 1374; *Greyhound Lines Inc. v. Sup. Ct.* (1979) 98 Cal.App.3d 604, 608 [court properly denied motion to enforce settlement agreement because there was substantial evidence to support the trial court's determination that Olsen had not agreed to the terms of the proposed settlement].)

Based on the foregoing, Plaintiffs have not provided a properly authenticated copy of the SAR, and have not established all of the requirements to seal the documents.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500151	MEZA VS LEE	MOTION FOR EXTENSION OF TIME AND MOTION FOR LEAVE TO FILE SUPPLEMENTAL COMPLAINT

Tentative Ruling: No tentative. Hearing will be conducted on Wednesday September 2, 2026 at 8:30 a.m. in Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502698	MOYA VS VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION	MOTION FOR ATTORNEYS FEES BY FRANCISCO MOYA, VANESSA MOYA

Tentative Ruling: Granted.

No opposition filed.

Attorney fees and costs to be paid by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. On April 9, 2025, Plaintiff filed a Song Beverly suit against Defendant alleging two causes of action for express and implied breach of warranty. A notice of settlement was filed on March 24, 2026.

Plaintiff brings this motion for attorneys' fees, costs, and expenses (\$21,867.65) as the prevailing party in this action. Plaintiff argues the amounts requested including hourly rates were reasonable and necessary along with a multiplier.

Defendant did not file an opposition.

Song Beverly Attorney Fees

Under Civil Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." For purposes of settlement, Defendant, GM, agreed that Plaintiff is the prevailing party. (Dec.Keshishian ¶ 20.) Notice of Settlement was filed on 1/31/25. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information such as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is

reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; *see also PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure). The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Here, Plaintiff asserts the work of 7 different attorneys and 1 clerk over the course of litigation amounting to 32.7 hours with a top hourly rate of \$550.00.

Based on the Court's own experience, the hourly rate of lead counsel at \$550 an hour is reasonable for Riverside County. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Again, Defendant not challenged any of the hourly rates so, no modification is needed.

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The court declines to award an enhancement or positive multiplier. Though Plaintiff's counsel took the case on a contingency basis, the risk of not obtaining fees in this case is virtually nonexistent as attorney fees are mandatory.

Attorney fees granted in amount of \$12,821.00 plus a multiplier of 1.2 for early resolution of the matter for a total fee amount of \$15,835.20. GRANTED

Costs

Plaintiff filed a Memorandum of Costs in the amount \$2636.15 which was not challenged. GRANTED

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600022	GOLDBERG VS GOLDENVOICE LLC	MOTION TO STRIKE COMPLAINT OF TESS GOLDBERG

Tentative Ruling: Sustained.

Sustained without leave to amend. Moving Defendants to file their answer to 1st cause of action within 20 days of this order becoming final.

Moving Defendants to provide notice pursuant to CCP 1019.5.

Plaintiff Tess Goldberg alleges she is a Jewish woman who attended the 2025 Coachella Valley Music and Arts Festival ("Festival"), produced, operated, and controlled by Defendants Goldenvoice, LLC ("Goldenvoice"), Anschutz Entertainment Group, Inc. ("AEG"), Paul Tollett, Melissa Ormond and Jay Marciano (collectively "Defendants"). During Weekend 1 of the Festival, a performing act booked and authorized by Defendants engaged in inflammatory chants such as "Fuck Israel" and "Free Palestine," and projected statements on a large visible screen, including "Israel is committing genocide" and conduct that triggered aggressive crowd responses and targeted hostility toward Jewish attendees. Plaintiff alleges she personally experienced fear and intimidation within the dense crowd environment and reasonably feared being identified or targeted as a Jewish attendee. Security failed to meaningfully intervene or de-escalate the situation. She did not attend Weekend 2 because she reasonably feared for her safety.

On January 5, 2026, Plaintiff filed this action. Following challenges to the pleadings, on June 29, 2026, Plaintiff filed her operative Second Amended Complaint ("SAC") alleging the following four (4) causes of action: 1) Negligence; 2) Violation of the Ralph Civil Rights Act (Civ. Code, § 51.7); 3) Intentional Infliction of Emotional Distress ("IIED"); and 4) Punitive Damages.

Defendants now demur to the 2nd, 3rd and 4th causes of action on the ground each fails to state sufficient facts to state a claim. (C.C.P., § 430.10(e).) Defendants argue Plaintiff fails to allege the 2nd cause of action for violation of the Ralph Act because she has failed to allege Goldenvoice or anyone else committed or threatened violent acts against her. As to the 3rd cause of action for IIED, it fails because as there is no outrageous conduct alleged. Finally, as to the 4th cause of action for punitive damages, this is not a separate claim.

In opposition, Plaintiff argues her claims are adequately alleged. The 2nd cause of action alleges five individuals surrounded her, blocked her path, physically pressed into her body, and prevented her from freely leaving because she is Jewish. She argues she has adequately alleged IIED as she reported the incident and Defendants acted with reckless disregard in failing to take corrective measures. She acknowledges punitive damages is a remedy but states she has alleged sufficient facts for same. Plaintiff also submits a declaration in support of her opposition. She requests leave to amend if the Court determines more detail is needed.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) On demurrer, the court accepts properly pleaded material facts as true but not legal conclusions. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hospital District* (1992) 2 Cal.4th 962, 967.) It is error to sustain a demurrer if the complaint states a cause of action on any legal theory, even one not specifically pleaded or articulated by the plaintiff. (*Id.* at p. 967.)

2nd Cause of Action - Violation of the Ralph Civil Rights Act (Civ. Code, § 51.7)

Under the Ralph Act, all persons within the state have the right to be free from violence, or intimidation by threat of violence, committed against their persons or property because of protected characteristics, including sex/gender. (Civ. Code, § 51.7(a); *see also* Civ. Code, § 51(b) and (e) [enumerating protected characteristics].) To state a claim under the act, a plaintiff must show that (1) the defendant threatened or committed violent acts against the plaintiff; (2) the defendant was motivated by his perception of plaintiff's protected characteristic (here, Plaintiffs' sex/gender); (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See *Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 881 [*quoting* CACI 3023]; *see also Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1291 ["Under the Ralph Act, a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right"].)

Further, Civil Code §51.7(e)(1) states that: "Speech alone shall not support an action brought pursuant to this section, except upon a showing of all of the following:

(A) The speech itself threatens violence against a specific person or group of persons;

(B) The person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property;

(C) The person threatening violence is acting in reckless disregard for the threatening nature of their speech; and

(D) The person threatening violence has the apparent ability to carry out the threat." Liability may also be found if a defendant "aids, incites, or conspires" in the denial of a right protected under Civil Code section 51.7.

(Civ. Code, § 52(b).)

Here, Plaintiff has not alleged that moving Defendants committed or threatened violent acts against her, as required by the Ralph Act. The SAC alleges an unidentified group of individuals "confronted Plaintiff perceived her to be Jewish, asked Plaintiff, 'Are you a Jew?,' surrounded her from multiple directions, blocked her movement, pressed their bodies into Plaintiff's body, prevented Plaintiff from freely leaving the area, and told Plaintiff, 'Time for you to leave, you're not welcome here.'" (SAC, ¶ 58.) She alleges Defendants knowingly permitted an environment of intimidation by threat of violence directed at Jewish attendees. (SAC, ¶¶ 56-63.) She states Defendants "knew or should have known of the risk that Jewish attendees would be subjected to intimidation, threats, hostility, and physical confrontations, yet failed to take reasonable measures to prevent, address, investigate, or respond to such conduct, and thereby aided, encouraged, facilitated, ratified, or failed to prevent the denial of Plaintiff's rights protected by Civil Code section 51.7. (*Id.*, ¶¶ 61-62.) There are no allegations that Defendants committed or directly threatened the violent acts, as required by the statute. Moreover, the

conclusory allegation that Defendants “aided” in the alleged confrontation by unidentified individuals is not supported with any factual allegations. SUSTAINED

3rd Cause of Action - Intentional Infliction of Emotional Distress

To recover for IIED, the conduct at issue must be outrageous. (*Cervantez v. J.C. Penney Co.* (1979) 24 Cal.3d 579, 593.) Defendant also must have intended to cause or acted with reckless disregard of the possibility of causing, severe or extreme emotional distress, and plaintiff must have suffered this distress. There must also be a causal nexus. (*Fletcher v. Western National Life Ins.* (1970) 10 Cal.App.3d 376, 394.) Outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.) This cause of action must be pleaded with specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.) This requires that the pleading allege “facts demonstrating the nature, extent or duration of [plaintiff’s] alleged emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Here, the SAC identifies the following as the intentional and outrageous conduct by Defendants include knew that Plaintiff and other Jewish attendees faced a foreseeable risk of intimidation, targeting, hostility, and emotional trauma and despite receiving complaints, reports, warnings, and notice concerning attendee safety and hostility directed toward Jewish attendees, Defendants consciously disregarded those risks and failed to adequately respond to reports of intimidation. (SAC, ¶¶ 65-67.) These allegations are insufficient as they are not specific facts showing extreme and outrageous conduct toward Plaintiff by these specific Defendants. SUSTAINED

4th Cause of Action - Punitive Damages

“There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances set forth in Civil Code section 3294.” (*Hilliard v. A. H. Robins Co.* (1983) 148 Cal.App.3d 374, 391.) Plaintiff concedes that this is not a cause of action. SUSTAINED

Leave to Amend

The real issue is leave to amend. “If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747; see also *King v. Mortimer* (1948) 83 Cal.App.2d 153, 158 [on demurrer to original complaint, “unless it shows on its face that it is incapable of amendment, denial of leave to amend constituted an abuse of discretion, [Citations] irrespective of whether leave to amend is requested or not”].) Leave to amend should be granted when there is a reasonable possibility the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) The burden of establishing

that there is a reasonable possibility that the complaint could have been amended to cure the defect "is squarely on the plaintiff. [Citation.]" (*Id.*; see also *Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 320.) The plaintiff must "identify specific facts showing the complaint can be amended to state a viable cause of action. [Citation.]" (*Minnick v. Automotive Creations, Inc.* (2017) 13 Cal.App.5th 1000, 1004.)

Here, this court stated at the last hearing on demurrer that Plaintiff was "granted leave one additional time." (Ntc. of Ruling filed 6/18/26.) Defendants insist that leave to amend is not appropriate. Plaintiff has had multiple opportunities to amend, but has failed to show that the challenged claims are capable of amendment.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600022	GOLDBERG VS GOLDENVOICE LLC	DEMURRER ON 2ND AMENDED COMPLAINT OF TESS GOLDBERG

Tentative Ruling: Granted.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Punitive damages allegations and prayer for relief in 2nd Amended Complaint are ordered stricken.